

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eva Vaillancourt	Team: Team # 4	CCRB Case #: 201300970	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 01/16/2013 7:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/16/2014	Precinct: 43
Date/Time CV Reported	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/15/2013 4:50 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Thomas Nicoletti	10662	925830	PBBX TF
2. POM Robert Rodriguez	14441	926015	PBBX TF

Officer(s)	Allegation	Investigator Recommendation
A . POM Thomas Nicoletti	Abuse: PO Thomas Nicoletti stopped the car in which § 87(2)(b) was an occupant.	A . Complainant Uncooperative
B . POM Robert Rodriguez	Abuse: PO Robert Rodriguez stopped the car in which § 87(2)(b) was an occupant.	B . Complainant Uncooperative
C . POM Thomas Nicoletti	Discourtesy: PO Thomas Nicoletti spoke discourteously to § 87(2)(b)	C . Complainant Uncooperative
D . POM Robert Rodriguez	Discourtesy: PO Robert Rodriguez spoke discourteously to § 87(2)(b)	D . Complainant Uncooperative

Case Summary

On February 22, 2013, the investigator contacted § 87(2)(b) and obtained a phone statement. At that time, he added an allegation that PO Robert Rodriguez told him, "Get the fuck out of the car." § 87(2)(b) accepted mediation over the phone, and the case was referred to the mediation department on April 22, 2013. On August 19, 2013, § 87(2)(b)'s case was returned to the investigator after both subject officers rejected the mediation option. On August 23, 2013, the investigator contacted § 87(2)(b) and scheduled an interview for August 27, 2013. § 87(2)(b) did not appear for his appointment, and did not call to cancel or reschedule. On August 28, 2013, the investigator called § 87(2)(b) again and scheduled him for a second appointment on August 30, 2013. § 87(2)(b) missed that appointment as well, and did not call to cancel or reschedule. To date, § 87(2)(b) has not contacted the investigator. § 87(2)(g) it is recommended that this case be closed as **complainant uncooperative**.

Team: _____

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____